

United States Court of Appeals
FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 23-1052**September Term, 2023**

FILED ON: JULY 5, 2024

EVERGREEN SHIPPING AGENCY (AMERICA) CORP. AND EVERGREEN LINE JOINT SERVICE
AGREEMENT,

PETITIONERS

v.

FEDERAL MARITIME COMMISSION AND UNITED STATES OF AMERICA,
RESPONDENTS

On Petition for Review of an Order
of the Federal Maritime Commission

Before: HENDERSON and GARCIA, *Circuit Judges*, and GINSBURG, *Senior Circuit Judge*

J U D G M E N T

This cause came on to be heard on the petition for review of an order of the Federal Maritime Commission and was argued by counsel. On consideration thereof, it is

ORDERED and **ADJUDGED** that the petition for review be granted; the Commission's order be vacated; and the case be remanded to the agency for further proceedings, in accordance with the opinion of the court filed herein this date.

Per Curiam

FOR THE COURT:

Mark J. Langer, Clerk

BY: /s/

Michael C. McGrail
Deputy Clerk

Date: July 5, 2024

Opinion for the court filed by Senior Circuit Judge Ginsburg.